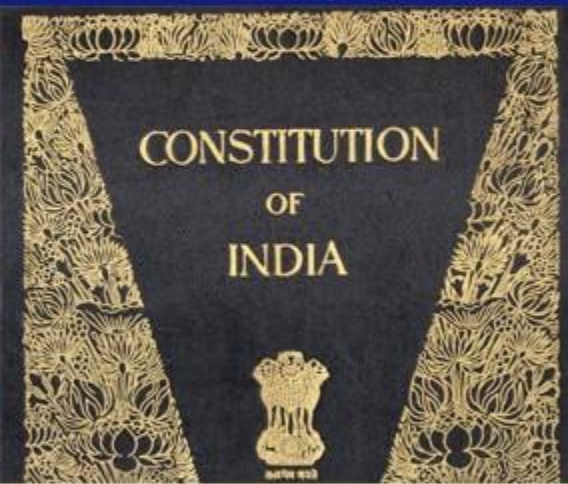


INDIAN POLITY



MODULE - 46

DIRECTIVE PRINCIPLES

- FEATURES OF DPSP
- CLASSIFICATION OF DPSP

DIRECTIVE PRINCIPLES OF STATE POLICY

INTRODUCTION

- 1 The Directive Principles of State Policy are enumerated in Part IV of the Constitution.



- 2 The framers of the Constitution borrowed this idea from the **Irish Constitution of 1937**, which had copied it from the Spanish Constitution.
- 3 Dr B R Ambedkar described these principles as '**novel features**' of the Indian Constitution.
- 4 Granville Austin has described the Directive Principles and the Fundamental Rights as the '**Conscience of the Constitution**'.

DIRECTIVE PRINCIPLES OF STATE POLICY

FEATURES OF THE DIRECTIVE PRINCIPLES

1. These are constitutional instructions to State

1 The phrase 'Directive Principles of State Policy' denotes the **ideals that the State should keep in mind** while formulating policies and enacting laws.

2 These are the constitutional instructions or recommendations to the State in legislative, executive and administrative matter.

3 According to Article 36, the term 'State' in Part IV has the same meaning as in Part III dealing with Fundamental Rights.

4 Therefore, it includes the legislative and executive organs of the central and state governments, all local authorities and all other public authorities in the country.

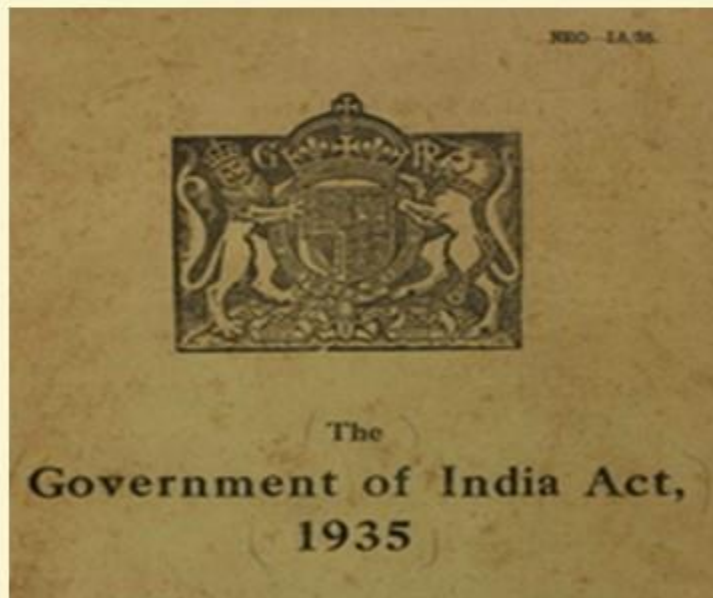


DIRECTIVE PRINCIPLES OF STATE POLICY

FEATURES OF THE DIRECTIVE PRINCIPLES

2. These are similar to Instrument of Instructions in Govt Act, 1935

- 1 The Directive Principles resembles the '**Instrument of Instructions**' enumerated in the Government of India Act of 1935.



- 2 In the words of Dr B R Ambedkar, the Directive Principles are like the instrument of instructions, which were issued to the Governor-General and to the Governors of the colonies of India by the British Government under the Government of India Act of 1935.
- 3 What is called Directive Principles is merely another name for the instrument of instructions.
- 4 The only difference is that they are instructions to the legislature and the executive.

DIRECTIVE PRINCIPLES OF STATE POLICY

FEATURES OF THE DIRECTIVE PRINCIPLES

3. Concept of 'Welfare State'



- 1 The Directive Principles constitute a very comprehensive economic, social and political programme for a modern democratic State.
- 2 They aim at realising the high ideals of justice, liberty, equality and fraternity as outlined in the Preamble to the Constitution.
- 3 They embody the concept of a 'welfare state' and not that of a 'police state', which existed during the colonial era.
- 4 In brief, they seek to establish economic and social democracy in the country.

DIRECTIVE PRINCIPLES OF STATE POLICY

FEATURES OF THE DIRECTIVE PRINCIPLES

4. Non-Justiciable in nature



- 1** The Directive Principle are non-justiciable in nature, that is, they are not legally enforceable by the Courts for their violation.
- 2** Therefore, the government (Central, state and local) cannot be compelled to implement them.
- 3** Nevertheless, the Constitution (Article 37) itself says that these principles are fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws.

DIRECTIVE PRINCIPLES OF STATE POLICY

FEATURES OF THE DIRECTIVE PRINCIPLES

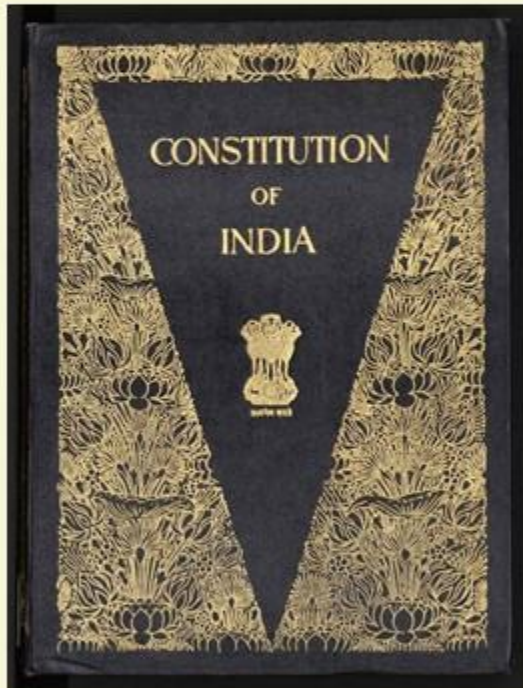
5. Helps in examining the constitutionality of law



- 1** The Directive Principles, though non-justiciable in nature, help the courts in examining and determining the **constitutional validity of law**.
- 2** The Supreme Court has ruled many a times that in determining the constitutionality of any law, if a court finds that the law in question seeks to give effect to a Directive Principle, it may consider such law to be 'reasonable' in relation to Article 14 (equality before law) or Article 19 (six freedoms) and thus save such law from unconstitutionality.

DIRECTIVE PRINCIPLES OF STATE POLICY

CLASSIFICATION OF THE DIRECTIVE PRINCIPLES



- The Constitution does not contain any classification of Directive Principles.
- However, on the basis of their content and direction, they can be classified into three broad categories, viz,
 1. Socialistic,
 2. Gandhian and
 3. Liberal-intellectual.

DIRECTIVE PRINCIPLES OF STATE POLICY

CLASSIFICATION OF THE DIRECTIVE PRINCIPLES

1 SOCIALISTIC PRINCIPLES

- *These principles reflect the ideology of socialism.*
- *They lay down the framework of a democratic socialistic state, aim at providing social and economic justice, and set the path towards welfare state.*
- *They direct the state:*

- 1 To promote the **welfare of the people** by securing a social order permeated by justice- social, economic and political- and to minimise inequalities in income, status, facilities and opportunities (Article 38)



DIRECTIVE PRINCIPLES OF STATE POLICY

CLASSIFICATION OF THE DIRECTIVE PRINCIPLES

1 SOCIALISTIC PRINCIPLES

- 2** To secure
- a) The right to adequate means of livelihood for all citizens.
 - b) The **equitable distribution of material resources** of the community for the common good.
 - c) **Prevention of concentration of wealth** and means of production.
 - d) Equal pay for equal work for men and women.
 - e) Preservation of health and strength of workers and children against forcible abuse.
 - f) Opportunities for healthy development of children (Article 39).

- 3** To promote equal justice and to provide **free legal aid** to the poor (Article 39A)

- 4** To secure the **right to work**, to education and to public assistance in cases of unemployment, old age, sickness and disablement (Article 41).

- 5** To make provision for **just and humane conditions of work** and maternity relief (Article 42).

DIRECTIVE PRINCIPLES OF STATE POLICY

CLASSIFICATION OF THE DIRECTIVE PRINCIPLES

1 SOCIALISTIC PRINCIPLES



- 6 To secure a **living wage**, a decent standard of life and social and cultural opportunities for all workers (Article 43).
- 7 To take steps to secure the **participation of workers** in the management of industries (Article 43 A).
- 8 To raise the level of nutrition and the **standard of living of people** and to improve **public health** (Article 47).

Living wage is different from minimum wage as it includes not just needs of food, clothing and shelter but also those of education, health etc.

DIRECTIVE PRINCIPLES OF STATE POLICY

CLASSIFICATION OF THE DIRECTIVE PRINCIPLES

2

GANDHIAN PRINCIPLES

- *These principles are based on Gandhian ideology .*
- *They represent the programme of reconstruction enunciated by Gandhi during the national movement.*
- *In order to fulfil the dreams of Gandhi, some of his ideas were included as Directive Principles.*
- *They require the State:*

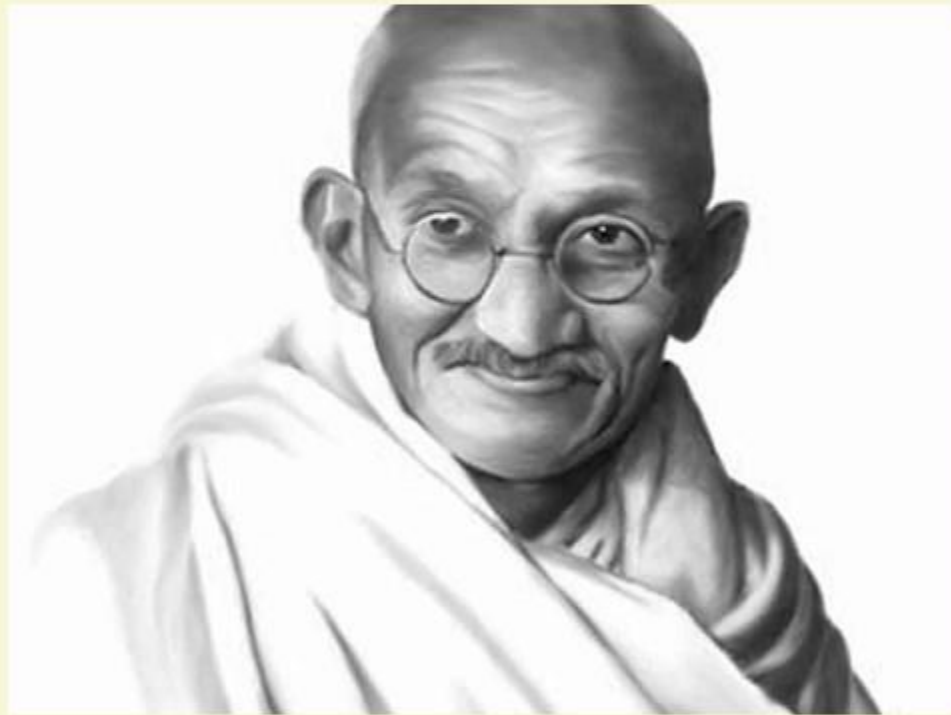
- 1 To **organise village panchayats** and endow them with necessary powers and authority to enable them to function as **units of self-government** (Article 40).
- 2 To promote **cottage industries** on an individual or co-operation basis in rural areas (Article 43).
- 3 To promote voluntary formation, autonomous functioning, democratic control and professional management of **co-operative societies** (Article 43B).

DIRECTIVE PRINCIPLES OF STATE POLICY

CLASSIFICATION OF THE DIRECTIVE PRINCIPLES

2

GANDHIAN PRINCIPLES



- 4 To promote the **educational and economic interests of SCs, STs**, and other weaker sections of the society and to protect them from social injustice and exploitation (Article 46).
- 5 To prohibit the **consumption of intoxicating drinks and drugs** which are injurious to health (Article 47).
- 6 To prohibit **the slaughter of cows**, calves and other milch and draught cattle and to improve their breeds (Article 48).

QUESTION

Consider the following provisions under the Directive Principles of State Policy as enshrined in the Constitution of India:

(UPSC PRELIMS 2012)

- 1) Securing for citizens of India a uniform civil code.
- 2) Organizing village Panchayats.
- 3) Promoting cottage industries in rural areas
- 4) Securing for all the workers reasonable leisure and cultural opportunities

Which of the above are the Gandhian Principles that are reflected in the Directive Principles of State Policy?

- | | |
|------------------|---------------------|
| a) 1, 2 & 4 only | b) 2 & 3 only |
| c) 1, 3 & 4 only | d) All of the above |

Answer: B

DIRECTIVE PRINCIPLES OF STATE POLICY

CLASSIFICATION OF THE DIRECTIVE PRINCIPLES

3 LIBERAL-INTELLECTUAL PRINCIPLES

- *The principles included in this category represent the ideology of liberalism.*
- *They direct the state for the following:*

- 1 To secure for all citizens a **uniform civil code** throughout the country (Article 44).
- 2 To provide **early childhood care** and education for all children until they complete the age of six years (Article 45).
- 3 To organise **agriculture and animal husbandry** on modern and scientific line (Article 48).
- 4 To protect and **improve the environment** and to safeguard forests and wild life (Article 48 A).

DIRECTIVE PRINCIPLES OF STATE POLICY

CLASSIFICATION OF THE DIRECTIVE PRINCIPLES

3 LIBERAL-INTELLECTUAL PRINCIPLES

5 To **protect monuments**, places and objects of artistic or historic interest which are declared to be of national importance (Article 49).

6 To **separate the judiciary from the executive** in the public services of the State (Article 50).



7 To **promote international peace** and security and maintain just and honourable relations between nations; to foster respect for international law and treaty obligations, and to encourage settlement of international disputes by arbitration (Article 51).



DIRECTIVE PRINCIPLES OF STATE POLICY

NEW DIRECTIVE PRINCIPLES



***Added by the 42nd
Constitutional Amendment Act***



- 1** To secure opportunities for healthy development of children (Article 39).
- 2** To promote equal justice and to provide free legal aid to the poor (Article 39 A).
- 3** To take steps to secure the participation of workers in the management of industries (Article 43A)
- 4** To protect and improve the environment and to safeguard forests and wild life (Article 48 A).

DIRECTIVE PRINCIPLES OF STATE POLICY

NEW DIRECTIVE PRINCIPLES

*Added by the 44th
Constitutional Amendment Act*

5 To minimise inequalities in income, status, facilities and opportunities (Article 38).

*Added by the 86th
Constitutional Amendment Act*

6 To provide early childhood care and education for all children until they complete the age of six years (Article 45).

*Added by the 97th
Constitutional Amendment Act*

7 To promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies (Article 43 B).

TRICKS TO REMEMBER DIRECTIVE PRINCIPLES 38-43B

**WE Like to Play With
Mother's Cheap PC**

W= Welfare of the People (38)
E= Equal Pay for equal work (39)
L= Free Legal aid (39A)
P= Panchayet (40)

W= Right to Work (41)
M= Maternity Relief (42)
C= Cottage Industry (43)
P= Participation of Workers (43 A)
C= Co-operative (43 B)

TRICKS TO REMEMBER DIRECTIVE PRINCIPLES 44-51

“**U**niformity must be present in **C**hild **P**rotection”

U= Uniform Civil Code (44)
C= Child care (45)
P= Protection of SC/ST (46)

“**I**ntoxicants for **C**ows and **W**ildlife are not of **N**ational Importance- the **E**xecutive said it **I**nternationally

I= Intoxicant (47)
C= Cow Protection (48)
W= Wildlife (48 A)
N= Monuments of National Importance (49)
E= Executive and Judicial Separation (50)
I= International Peace (51)

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
D. Joji
K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2
0 9 8 4 9 9 4 2 2 9 9